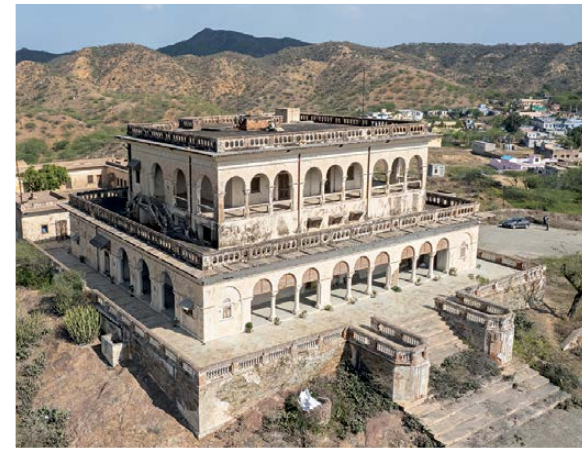




"You won't be able to have lunch if you see these pictures"
—Supreme Court, January 18, 2023

"As a British citizen, it is inexplicable to me why the State would ruin the valuable heritage of its people"
—Lord Francis Baring Northbrook, member, Khetri Trust

When the Shekhawati winds blow through these pillared arches and niches now, they make a mocking sound. In 1770, when the 'Wind Palace' of Khetri was conceived, it was as a graceful *jugalbandi* between nature and culture. An idea good enough to be borrowed—it was soon to become the prototype for Hawa Mahal, the staple of tourism brochures that's emblematic of Jaipur, a hundred miles to the south, and indeed of Rajasthan's entire architectural heritage. But the place of genesis now marks the spot of a suicide attempt. You could draw a circle in white chalk around Khetri and write, 'This is where Heritage tried to kill itself.' The Aravalli wilderness, dry and thorny, has long seeped into its palace gardens. The wind deposits bits of the desert in patios and hallways, scarring dainty frescoes and mirror work. Lizard droppings and bird

A TANGLED WEB

The Khetri estate, including about half-a-dozen heritage structures, has been caught in a legal quagmire for 37 years

1985 → **Raja Bahadur Sardar Singh, the last titular head of Khetri and an heirless divorcee, executes a will at Tis Hazari court, Delhi, leaving all his moveable/immoveable properties to a newly-formed Khetri Trust**

1987 → **Sardar Singh dies. Acting on a plaint of internal purloining of valuables, Rajasthan invokes the Escheats Act of 1956, which gives the State the right to take over unclaimed properties without any heirs**

Khetri Trust files a case for grant of probate—i.e. for the will to be validated—so as to get ownership. At least seven self-proclaimed 'cognates and agnates' (heirs) claim title

2016 → **Revenue Court Ajmer stays last favourable decision for state, a collector's order on Escheats. Then, Rajasthan HC overturns a 2012 order, and holds the state's invoking of the Escheats doctrine to be invalid**

2023 → **Delhi HC, again overturning a prior order, grants probate to the Trust—thereby clearing its ownership; state Revenue Board strikes down its own Escheats proceedings**

The SC takes over supervision of restoration, and is hearing Rajasthan's appeal against the probate ruling. It has not stayed either HC ruling favouring the Trust, verbally implying that closure is imminent